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File No.: EXP202211439

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On September 15, 2022, a complaint was filed with the Spanish Agency for Data Protection against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the respondent).

The reasons for the complaint are as follows:

On August 11, 2022, the complainant contacted the respondent to request access to all recordings of their calls with the respondent's customer service center from the last five months. They state that during this period, they made at least ten calls to the respondent's customer service center, in addition to receiving some calls from the respondent itself. They express that, among these calls, several involved "changes to tariffs and contracts."

They also state that, in response to their request, the respondent provided them with the recording of a single call corresponding to one of the "changes of conditions."

Relevant documentation provided by the complainant:

Document transcribing the emails exchanged between the complainant and the respondent regarding the facts subject to the complaint. It contains:

- The complainant's request to the respondent made on August 11, 2022, for the recordings of their conversations with customer service, with special mention to those made on May 12, 2022. It also indicates that the phone number "from which the calls were made" is ***PHONE.1.
- Response directed by the respondent to the complainant on August 11, 2022, with the following text: "In response to your email, we would like to sincerely apologize for the inconvenience caused by this situation. Due to this, we are sending you recording No. ***NUMBER.1; which was generated on 10/08/2022 and is the only one we have available, as well as being current since the audios are stored randomly [sic] according to quality policies. Of course, if you need anything additional or have any other questions, we will try to help you resolve it as soon as possible."

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- Reiteration by the complainant of their "request for the recordings from May 12."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent/ALIAS, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on October 31, 2022, as stated in the certificate in the file.

On December 1, 2022, a response was received by this Agency indicating the following:

The complainant requested on August 11, 2022, access to the recordings of the calls made with Customer Service.

On the same August 11, 2022, the request was addressed by providing recording No. ***NUMBER.1, dated August 10, 2022, and informing them of the impossibility of providing the communication corresponding to May 12, 2022, or evidence of other calls.

Once the forwarding from the AEPD was received, the respondent directed a new communication to the complainant responding to the exercise of the right of access and informing them that there are no recordings in their systems for May 2022.

The respondent summarizes that, in response to the request for access to the recordings made by the

complainant on August 11, 2022, the recording of the conversation held on August 10, 2022, was provided, as well as evidence of the contract made on May 12, 2022. Furthermore, they state that it is not possible to provide recordings of the conversations held on May 12, 2022, as they do not exist in their information systems. They justify this last aspect in the following terms: "the telephone calls received by Vodafone's customer service are only recorded randomly and for the purpose of quality of service, as is expressly informed to those interested in carrying out any procedure through the telephone channel. [...] the number of requests and procedures that Vodafone manages by telephone makes it practically unfeasible to record and retain all the transactions carried out by telephone with the customer service of this entity, so Vodafone only records a representative number of the total transactions carried out by telephone in order to evaluate the quality of customer service or to verify the contract made by a new customer."

Relevant documentation provided by the respondent:

Document 1: copy of the emails exchanged between the complainant and the respondent.

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maintain and the respondent regarding the facts subject to the claim. It contains:

- Copy of the emails dated August 11, 2022, also attached by the claimant and referred to previously.
- Copy of the email dated August 12, 2022, sent by the claimant to the respondent in which the request is reiterated and whose content has also been attached by the claimant and referred to previously.
- Copy of the email dated August 12, 2022, sent by the respondent to the claimant in response to the one mentioned in the previous paragraph. It includes the following text: "[...] we inform you that our system does not have the recording you requested from 12/05/2022 as they are stored [sic] randomly, but we remind you that on that day at the time of contracting we sent you a contract where the service conditions are provided and this was accepted by you."

Document 2: copy of the communication sent by the respondent to the claimant on December 1, 2022, after receiving the transfer from the AEPD. It states the following:

"Through this letter, we want to inform you that, after becoming aware of your request to exercise the right of Access, we proceeded to respond as quickly as possible, resolving your request.

The response included recording No. ***NUMBER.1, related to August 10, 2022. This is the only recording of a conversation you had with Vodafone that appears in our systems. Furthermore, we inform you of the impossibility of sending you the recording dated May 12, 2022, as there is no recording made on that date in Vodafone's systems.

To this end, we inform you that calls made to Vodafone's Customer Service are not recorded in their entirety, but rather randomly, as evidenced by the initial message when contacting Customer Service stating that "calls may be recorded" to improve service delivery.

In any case, and in order to adequately respond to your request, we are sending a copy of the contract formalized between you and Vodafone on May 12, 2022."

Document 3: contract dated May 12, 2022, in the name of the claimant (also attached by the respondent as document 2 of the Respondent's Submission).

It includes in its first four pages the "summary of your contract" referring to order number ***NUMBER.2, the contracted service "Vodafone One Unlimited Advanced (Fiber 300Mb)," and the service for which cancellation has been requested "Vodafone Fiber 300Mb." The next three pages refer to the "Mobile Service, Broadband, Fixed and TV Contract for Individual Customers," which contains the customer's data (the claimant) including the phone number ***PHONE.1 and the email address ***EMAIL.1.

The last three pages contain a certificate issued by DIGITEL ON TRUSTED SERVICES SLU (C.I.F. B47447560) stating the following:

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“Address ***EMAIL.1

Name A.A.A.

Identity Document ***NIF.1

Body of the email:

Vodafone Hello A.A.A., As we discussed, we are sending you your contract. Please review it and sign it following the instructions we provide. Sign contract

This link is valid for two hours. It is very important that you sign your contract as soon as possible to activate your services. Thank you for trusting Vodafone. Follow us on Facebook Twitter YouTube Instagram App My Vodafone The largest network in Europe, powered 100% by renewable energy
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[...] certifies that an SMS was sent from the number ***PHONE.2 to the end user with identity document ***NIF.1 and mobile phone number ***PHONE.1 on May 12, 2022, at 21:56:53 (GMT +02:00) with the following text:

VF Info: Thank you for trusting Vodafone! Review and sign your contract using the code we will send you via SMS. Access: <https://masinfo.one/aRTjmS8tfh>

[...] certifies that an SMS was sent from the number ***PHONE.2 to the end user with identity document ***NIF.1 and mobile phone number ***PHONE.1 on May 12, 2022, at 22:03:02 (GMT +02:00) with the following text:

VF Info: Here is the code ***** necessary to sign the contract with Vodafone. It will be valid for 2 hours

[...] the end user has signed the contract by clicking the signature button from which the following information has been collected: (...) from the following IP address: ***IP.1

And for this to be recorded, it is issued, signed, and sealed on May 12, 2022, at 22:03 (GMT +2:00).”

Document 4: report of the interactions maintained by the respondent with the claimant regarding the access request.

THIRD: On December 5, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH: The General Subdirector for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

Regarding the contracting procedure through the respondent's telephone channel

In relation to the contracting procedure through the telephone channel, the respondent has previously described the process:

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“1- When interacting with a customer, a structure for the telephone conversation is defined for the correct explanation of the commercial offer, as well as for the correct data collection and identity verification. In this regard, the structure that the agent must follow during the call is attached as Document number 8.

2- Once the data collection has been completed and the Security Policy has been passed, which is attached as Document number 9, if the customer accepts the commercial offer, the next step would be to input the contracted services into the systems and to sign the contract. The flow of contracting is attached as Document number 10.

In this channel, unlike the In-Person Channel, the contract can be perfected by (i) certified signature or (ii) voice recording. That is to say, there is no possibility of performing a manual signature in

telemarketing.

- i. Certified signature: the same process as explained for the In-Person Channel is followed.
- ii. Voice recording: in the event that the certified signature process fails or cannot be completed, a voice recording is made in which the customer accepts the terms of the contract. This recording is made through Vodafone's Customer Relationship Management (CRM) system, SMART. Integrated tools within Vodafone's CRM are used to make this recording, but these tools do not have access to customers' personal data. The recordings are kept for a period of five years plus the current year. This means that the recording is retained for the entire calendar year in which it is made and for an additional five years; for example, if the recording is made in February, it will be archived until the end of that calendar year and, additionally, for five more years.

3- Once the recording or SMS has been sent, follow-up is done from the sales platform until the service installation.

[...] In cases where the certified signature is used, a voice recording is not made."

Additionally, regarding this matter, the following documents have been incorporated:

The "Document number 8" cited, which corresponds to a general telephone script of the respondent.

The "Document number 9" referred to, which corresponds to the security policy of the respondent in its interaction with customers.

The "Document number 10" mentioned, which corresponds to the diagram of the telephone sales process.

Regarding the procedure for perfecting the contract through a certified signature

In relation to the procedure for signing the contract entered into between the claimant and the respondent on May 12, 2022, the respondent has previously described the certified signature process:

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"In this regard, the workflow followed for the certified signature would be as follows (attached as Document number 5):

1. Creation of the work order: at the moment when the Agent/Commercial selects the method of "Certified Signature," after the Scoring consultation, they must select the phone number and email to which all documentation will be sent for the customer to sign. Subsequently, the system generates the applicable contractual documents, as well as the purchase confirmation, and these will be sent to the provider (Digitel On Trusted Services, S.L.U. (hereinafter, "Digitel"), a company certified as a "Trust Service Provider") for the customer's signature.

Attached as Document number 6 is the trust service provider certificate from Digitel and, as Document number 7, the personal data processing agreement signed with this same entity.

2. Sending to the provider: Digitel will process all the documents sent so that they can be signed and will send an email/SMS with a button to access a webpage or landing page of Digitel for the customer to enter their ID.

3. Sending to the customer: the customer will receive the documentation via SMS Link and Email, along with a one-time code (OTP) to proceed with the signature.

4. Acceptance and sending of documentation: once the customer has accepted the General Conditions and has signed all the documentation, the signature provider (Digitel) will send the signed documents along with the acceptance log to the customer via email and SMS.

5. Sending documentation to Vodafone: in addition to sending them to the customer, all these signed documents will be sent to Vodafone via a file transfer protocol (FTP)."

Regarding the previous process, the following documents have been incorporated:

The "Document number 5" cited, which corresponds to the diagram of the contract acceptance process.

The "Document number 6" referred to, which corresponds to the certificate issued by AENOR to Digitel TS in accordance with Regulation (EU) 910/2014.

The "Document number 7" referred to, which corresponds to the personal data processing agreement signed between the respondent and DIGITEL DOCUMENTOS, S.L. (hereinafter Digitel Docs) dated October 1, 2019 (signed in September 2021). It specifies (Annex 1) that Digitel TS acts as a sub-processor and (Annex 2) that Digitel Docs acts as the data processor for the respondent for the provision of digital signature services.

The registration of Digitel TS in the electronic headquarters of the Ministry of Economic Affairs and Digital Transformation as a qualified trust service provider in relation to the service of issuing qualified electronic time stamps.

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Digitel TS has confirmed that it provides the respondent with electronic contracting services. In this regard, it has provided - Annex 1 - the technical and commercial proposal of the solution it offers. It has also described the actions taken in the context of the contracting carried out between the contractor and the respondent on May 12, 2022, providing the stored evidence (- Annex 2 - the "copy of the signed Contract which also contains the electronic certificate (audit document) with the details of the signing process"). The following are the steps of the process and its specific application to the aforementioned contracting according to the information provided by Digitel:

The respondent provides Digitel TS with "the necessary data to carry out the signing and contracting process, specifically: ID number, NIE or NIF, email, mobile phone, first and last name of the holder, PDF of the contract and of the documents that need to be made available to the signer."

In the case of the contracting carried out between the claimant and the respondent, Digitel states that on May 12 at 21:56 hours, it received the following data from the claimant:

"Name and surname: A.A.A.

ID: ***NIF.1

Email: ***EMAIL.1

Mobile phone: ***TELÉFONO.1"

The Digitel TS system "sends the final customer a certified communication with a URL for access to the DIGITEL signing portal for the service provided for VODAFONE." It also states that the customer can choose for the communication to be directed to them via email or SMS to the mobile phone number.

In the case of the contracting carried out between the claimant and the respondent, Digitel has certified (Annex 2) the sending of the following SMS on May 12 at 21:56:53 hours from the number ***TELÉFONO.2 to the phone ***TELÉFONO.1: "VF Info: Thank you for trusting Vodafone! Review and sign your contract using the code we will send you via SMS. Access at: <https://masinfo.one/aRTjmS8tfh>."

The certificate (Annex 2) also indicates that at this point an email was sent to ***EMAIL.1 from the address firma.vodafone@digitelts.com. However, Digitel states in its writing that "this initial email was not sent, and therefore, it was provided via SMS as indicated above." Regarding this, it reproduces the record of the error that occurred when attempting to send the message ("***EMAIL.1 is not valid"). The customer "accesses the signing portal where they are requested to log in with their identification document number and are informed of the terms and conditions of the identification process that they must accept to continue the process."

The Digitel Writing includes the information from the "log" related to the customer's "login" process. This includes the following access information: date "***FECHA.1", access IP address "***IP.1", and information sent from the access browser: (...).

"After logging in, the final customer of VODAFONE will be able to view the contract on any device and will have the option to download it for storage."

Digitel provides (Digitel Writing) on one hand a screenshot showing how the contract is displayed, and on the other hand, the record of access made on May 12, 2022, at 22:02 hours by the user ***NIF.1.

"Finally, the process of acceptance and signing of the document is initiated through an SMS sent to the

mobile phone provided by the signing customer to VODAFONE as a communication channel with the OTP signing key. If the SMS with the code has not been received, it can be requested to be sent again through the 'Resend' option."

In the case of the contracting carried out between the claimant and the respondent, Digitel has certified (Annex 2) the sending of the following SMS on May 12 at 22:03:02 hours from the number ***TELÉFONO.2 to the phone ***TELÉFONO.1: "VF Info: Here is the code ***** necessary to sign the contract with Vodafone. It will be valid for 2 hours."

Additionally, it has provided the record of the sending of the signing code (OTP - "One Time Password") made on May 12, 2022, at 22:03 hours to the user ***NIF.1.

The customer then "must enter the 6-digit code received in the signing portal, as acceptance of the contractual conditions." It adds that this code "will expire 24 hours from its notification and the maximum number of attempts to enter the code is 5 attempts."

The Digitel Writing includes, on one hand, a sample screenshot of the portal through which the OTP code is entered, and on the other, the record of the execution of the signing process carried out on May 12, 2022, at 22:03 hours from the IP address ***IP.1.

Furthermore, Digitel has certified (Annex 2) that the signing button was pressed from the following IP address ***IP.1, having collected during the process the following characteristics of the device from which it was carried out: (...)

Digitel TS "generates an electronic certificate that collects all the electronic evidence associated with the signing process used by each customer, so that VODAFONE has it available for 5 years from the date of the effective signing of the contractual documents."

Digitel states that in this case the certificate was sent to the respondent on the same day, May 12, 2022, at 22:03 hours.

It adds that "To finalize the process, a copy of the signed contract is sent to the final customer along with a welcome message confirming the signing of their conditions." Annex 1 includes a sample screenshot of this confirmation email directed to the customer.

Digitel states, however, that in this case the sending of the email

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with "the copy of the signed contract that also contains the electronic certificate with the audit of the signing process" (Annex 2) failed. Regarding this, it provides the record of the error that occurred when attempting to send the message ("***EMAIL.1 is not valid").

The inspector has verified that Annex 2 was electronically signed on May 12, 2022, at 22:03:25 hours with a Digitel certificate. Additionally, it includes an electronic timestamp made on May 12, 2022, at 22:03:27 hours using a Digitel electronic seal certificate.

Regarding the recordings kept by the respondent

The respondent stated in their response to the transfer of the complaint the following:

"the telephone calls received by Vodafone's customer service are only recorded randomly and for the purpose of quality of the service provided to the customer, as is expressly informed to those interested in carrying out any procedure through the telephone channel. [...] the number of requests and procedures that Vodafone manages by telephone makes it practically unfeasible to record and keep all the transactions carried out by telephone with the customer service of this entity, so Vodafone only carries out the recording of a representative number of the total transactions carried out by telephone in order to evaluate the quality of customer service or to prove the contracting made by a new customer."

Furthermore, regarding this issue, the respondent has previously specified that:

"Telemarketing to customers: in this channel, a telephone contact is made with the customer in which the Vodafone offer is presented and the necessary data is collected to continue with the contracting. During the same call, if it is not possible to use the certified signature, the acceptance of the contract by the customer will be recorded, storing the recording in Vodafone's CRM. [...] The rest of the recordings, except for a small percentage that are recorded for quality reasons, are not recorded."

In this same vein, the respondent has stated that "due to the large volume of calls that Vodafone manages, not all telephone interactions are recorded. Vodafone records all those calls through which a contract is perfected, that is, those in which the recording is the only proof of the customer's consent."

These recordings are stored for a period of six years in my client's own systems. The rest of the interactions are recorded randomly for quality reasons. The retention periods for quality recordings are not fixed, as a fixed amount of storage is contracted, and when the maximum capacity is reached, the oldest recordings begin to be overwritten."

Regarding the telephone conversations held between the complainant and the respondent, the latter states that none of them resulted in the perfection of a contract. Thus, it states that the telephone interactions between both parties "have occurred either for different reasons (e.g., inquiries, offers, etc.), or although their origin was a contracting, the acceptance of the contract was made...

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before certified signature." It states that in the system where interactions with customers are recorded, a total of 85 interactions with the claimant have been located. Attached to the response, document 1, is a list with the recorded information of the interactions. It adds that, of all these, only one recording has been identified, corresponding to the call made on August 10, 2022 (provided to the claimant via email on August 11, 2022). It notes that this call was recorded for quality purposes.

LEGAL GROUNDS

I

Competence

According to the functions assigned to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Right of access of the data subject

Article 15 of the GDPR, which regulates the right of access of the data subject, establishes the following:

"1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning them are being processed and, where that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. Where personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards under Article 46 relating to the transfer.

3. The controller shall provide a copy of the personal data undergoing processing. The controller may

charge a reasonable fee based on the administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.”

III

Reasons for the complaint

The complaint is based on the fact that the claimant has been denied access to the recordings of the conversations they have had with the Customer Service Center of the respondent. The claimant specifically cites that, on August 11, 2022, they requested a copy of the recordings of the telephone interactions made in the five months preceding, expressly emphasizing the desire to obtain those held on May 12, 2022.

The respondent, regarding the policy for the custody of recordings, has indicated that, on one hand, it records all calls through which a contract is perfected, and on the other hand, it randomly stores a percentage of the remaining calls for quality purposes. Additionally, it has stated that the former have a fixed retention period of six years, while the latter do not have a set period but are periodically overwritten according to the availability of the contracted storage.

Regarding the contracting procedure, the respondent has indicated that, once the process is initiated through the telephone channel, the perfection of the contract can be completed either through voice recording or through a certified signature system. It notes that, in the latter case, where the recording is not retained, a third party (Digitel) participates to certify the process of sending and digitally signing the contract. The details of this process, according to the information provided by Digitel, have been detailed in the Facts of this Resolution.

According to the information obtained during the investigation, the respondent contacted the claimant on the same day, August 11, 2022, providing a single recording, generated on August 10, 2022, for quality purposes, stating that no additional recordings were available. Regarding the interaction on May 12, 2022, the respondent has not provided further information.

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May 12, 2022, referred to by the claimant, states that the respondent indicates that, although the telephone conversation took place in the context of a contract, it was perfected through the certified signature system, not giving rise to the automatic storage of the audio file as contractual evidence. Both the respondent and Digitel, as the entity responsible for providing the certified signature platform, have provided evidence of the execution of the process.

IV

Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection, as the respondent responded to the request for access to the requested recordings immediately.

In accordance with what has been stated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U., and to the claimant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative

Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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